

Sri Kedar Nath v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 31 August 2020 · WRIT - C No. - 13073 of 2020 · **Writ dismissed; petitioner relegated to Clauses 6.1 and 6.4.**

HEADNOTE

A writ court will not undertake a factual enquiry under Article 226 into an assessment of electricity dues or a recovery notice. The consumer's remedy is to approach the competent officer under Clause 6.1 or 6.4 of the Electricity Supply Code, 2005. Mandamus for instalment deposit was refused on that footing and the petition was dismissed.

FACTUAL SUMMARY

Sri Kedar Nath challenged before the High Court of Judicature at Allahabad an assessment of electricity dues and a recovery notice issued on 4 July 2020. He also sought a mandamus commanding the respondents to allow him to deposit the recovery amount in easy instalments. Counsel for respondent nos. 2 to 4 appeared at the hearing.

HOLDING-UNITS

INTERPLAY · UP-2005::6.1

assessment-dues-recovery-alternate-remedy

HOLDING

Relief against assessment of electricity dues and a consequent recovery notice, including a mandamus to accept the amount in instalments, cannot be granted in writ jurisdiction because a factual enquiry cannot be undertaken in the limited scope of Article 226. The effective remedy is to approach the concerned officer under Clause 6.1 or 6.4 of the Electricity Supply Code, 2005, as the consumer may be advised. The writ petition was dismissed with liberty to invoke those provisions. ¶ 1

PRINCIPLE TAGS

art-226-no-factual-enquiry-assessment-relegated-clause-6.1-or-6.4

The Division Bench refused to examine the assessment of dues or the 04.07.2020 recovery notice on merits, held that Article 226 does not permit a factual enquiry, and directed the petitioner to the competent authority under Clause 6.1 or 6.4 of the 2005 Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ASSESSMENT OF ELECTRICITY DUES AND VALIDITY OF THE RECOVERY NOTICE DATED 04.07.2020

Left to the competent officer under Clause 6.1 or 6.4. ¶ 1

NOT DECIDED — ENTITLEMENT TO DEPOSIT THE RECOVERY AMOUNT IN EASY INSTALMENTS

¶ 1